

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL ITEMS OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, & 30				1. REQUISITION NUMBER		PAGE OF 1 22																			
2. CONTRACT NO.		3. AWARD/ EFFECTIVE DATE	4. ORDER NUMBER		5. SOLICITATION NUMBER 75H70726R00003		6. SOLICITATION ISSUE DATE 03/18/2026																		
7. FOR SOLICITATION INFORMATION CALL:		a. NAME STEPHANIE BEGAY		b. TELEPHONE NUMBER (No collect calls) 505-256-6750		8. OFFER DUE DATE/LOCAL TIME 05/11/2026 1700 ET																			
9. ISSUED BY Albuquerque Indian Health Service 4101 Indian School Rd NE, Suite 225 Albuquerque NM 87110				10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☒ SET ASIDE: 100.00 % FOR: ☒ SMALL BUSINESS ☐ HUBZONE SMALL BUSINESS ☐ SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS (SDVOSB) ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) ☐ ECONOMICALLY DISADVANTAGED WOMEN-OWNED SMALL BUSINESS (EDWOSB) ☐ 8(A) NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): 561210 SIZE STANDARD: \$47																					
11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE		12. DISCOUNT TERMS		13a. THIS CONTRACT IS A RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700) ☐		13b. RATING																			
15. DELIVER TO CODE		16. ADMINISTERED BY Albuquerque Indian Health Service 4101 Indian School Rd NE, Suite 225 Albuquerque NM 87110		14. METHOD OF SOLICITATION ☐ REQUEST FOR QUOTE (RFQ) ☐ INVITATION FOR BID (IFB) ☒ REQUEST FOR PROPOSAL (RFP)		17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER																			
17a. CONTRACTOR/ OFFEROR CODE		FACILITY CODE		18a. PAYMENT WILL BE MADE BY CODE		18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM																			
<table border="1" style="width:100%; border-collapse: collapse;"> <thead> <tr> <th style="width: 10%;">19. ITEM NO.</th> <th style="width: 50%;">20. SCHEDULE OF SUPPLIES/SERVICES</th> <th style="width: 10%;">21. QUANTITY</th> <th style="width: 10%;">22. UNIT</th> <th style="width: 10%;">23. UNIT PRICE</th> <th style="width: 10%;">24. AMOUNT</th> </tr> </thead> <tbody> <tr> <td></td> <td>Solicitation No. 75H70726R00003 is hereby issued to provide Mechanical, Electrical, and Plumbing (MEP) repair, maintenance, inspection, and emergency services to Albuquerque Area Indian Health Service (AAIHS) facilities.</td> <td></td> <td></td> <td></td> <td></td> </tr> <tr> <td colspan="6" style="text-align: center;">(Use Reverse and/or Attach Additional Sheets as Necessary)</td> </tr> </tbody> </table>								19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT		Solicitation No. 75H70726R00003 is hereby issued to provide Mechanical, Electrical, and Plumbing (MEP) repair, maintenance, inspection, and emergency services to Albuquerque Area Indian Health Service (AAIHS) facilities.					(Use Reverse and/or Attach Additional Sheets as Necessary)					
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25. ACCOUNTING AND APPROPRIATION DATA					26. TOTAL AWARD AMOUNT (For Government Use Only)																				
☐ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED.																									
☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED.																									
☐ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN _____ COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED.				☐ 29. AWARD OF CONTRACT: REFERENCE _____ OFFER DATED _____ YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:																					
30a. SIGNATURE OF OFFEROR/CONTRACTOR				31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)																					
30b. NAME AND TITLE OF SIGNER (Type or print)		30c. DATE SIGNED		31b. NAME OF CONTRACTING OFFICER (Type or print)		31c. DATE SIGNED																			
				SHANDIIN R. DEWOLFE																					

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT

32a. QUANTITY IN COLUMN 21 HAS BEEN

☐ RECEIVED ☐ INSPECTED ☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED: _____

32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE	32c. DATE	32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE
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32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE	32f. TELEPHONE NUMBER OF AUTHORIZED GOVERNMENT REPRESENTATIVE
	32g. E-MAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE

33. SHIP NUMBER	34. VOUCHER NUMBER	35. AMOUNT VERIFIED CORRECT FOR	36. PAYMENT ☐ COMPLETE ☐ PARTIAL ☐ FINAL	37. CHECK NUMBER
☐ PARTIAL ☐ FINAL				

38. S/R ACCOUNT NUMBER	39. S/R VOUCHER NUMBER	40. PAID BY
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41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT	42a. RECEIVED BY (<i>Print</i>)
41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER	42b. RECEIVED AT (<i>Location</i>)
41c. DATE	42c. DATE REC'D (<i>YY/MM/DD</i>)
	42d. TOTAL CONTAINERS

SECTION B – CONTINUATION

This is a combined synopsis/solicitation for commercial products or commercial services prepared in accordance with part 12. This announcement constitutes the only solicitation. Quotes are being requested and a separate written solicitation will not be issued.

Solicitation No. 75H70726R00003 is issued as a Request for Quotation (RFQ) for Mechanical, Electrical, and Plumbing (MEP) services for the Albuquerque Area Indian Health Service (AAIHS).

This acquisition is a total Indian Small Business Economic Enterprise (ISBEE) Set-Aside, with a cascading set-aside. Under the Buy Indian Act, 25 U.S.C. 47, through the transfer of authority from the Department of Interior to HHS, offers will be solicited from ISBEEs (see HHSAR Subpart 326.6) that are also small business concerns. If there is not enough competition and/or reasonably priced offers received from the ISBEE set-aside, then quotes will be considered for award to other small business concerns. Any requisition resulting from this cascading set-aside will be from such a concern as follows:

1st Tier: Indian Small Business Economic Enterprise (ISBEE)

2nd Tier: All other Small Business concerns

This solicitation incorporates provisions and clauses by reference. The full text of provisions and clauses may be accessed electronically at www.acquisition.gov.

The associated North American Industrial Classification System (NAICS) code for this procurement is 561210 with a small business size standard of \$47.0 million.

1. CONTRACT TYPE

The Department of Health and Human Services (DHHS), Albuquerque Area Indian Health Service (IHS), Division of Contracts and Grants Management (DCGM), anticipates awarding **multiple firm-fixed price Blanket Purchase Agreements (BPA)** for Mechanical, Electrical, and Plumbing (MEP) services for several Albuquerque Area Indian Health Service (AAIHS) facilities, as a result of this opportunity.

2. PLACE OF PERFORMANCE

Albuquerque Service Unit
801 Vassar Drive NE
Albuquerque, NM 87106

Jicarilla Service Unit
500 Mundo Road
Dulce, NM 87528

Mescalero Service Unit
318 Abalone Loop
Mescalero, NM 88340

New Sunrise Regional Treatment Center
20 Mockingbird Dr
San Fidel, NM 87049

Santa Fe Service Unit
1700 Cerrillos Road
Santa Fe, NM 87505

Taos/Picuris Service Unit
1090 Goat Springs Road
Taos, NM 87571

Zuni Service Unit
Route 301 North 21 B. Avenue
Zuni, NM 87327

3. PERIOD OF PERFORMANCE (POP)

Performance will be for the base year only, unless the period is changed by written modification, as per FAR 17.207(c). If the Government exercises the option pursuant to FAR 52.217-9 - Option to Extend the Term of the Contract (Mar 2000), the period of performance shall be extended in accordance with the following schedule:

<u>Base Year:</u>	TBD/2026 – TBD/2027
<u>1st Option Year:</u>	TBD/2027 – TBD/2028
<u>2nd Option Year:</u>	TBD/2028 – TBD/2029
<u>3rd Option Year:</u>	TBD/2029 – TBD/2030
<u>4th Option Year:</u>	TBD/2030 – TBD/2031

4. PRICING SUMMARY

Upon delivery and acceptance of the services described in the Statement of Work (SOW) and identified in the schedule of charges below, the Government shall pay to the Contractor the total prices set forth in ***Attachment #1 Pricing Fillable Form***.

* - **Note**- # of weeks is subject to change due to Federal Holidays, unexpected closures/delays, etc.

* - **All-inclusive**: The hourly rate shall be an all-inclusive rate of all other fees including travel expenses, all cities, state, federal, and local taxes; and miscellaneous cost associated with the above services.

As an independent Contractor; billing and collecting for the federal, state and other local city/county taxes is the responsibility of the Contractor, this includes the New Mexico Gross Receipt Taxes (NMGR) for services provided in any county of the State of New Mexico. The Indian Health Service will not withhold taxes nor will it issue a W-2 to the contractor.

5. POINTS OF CONTACT (POC)

Contracting Officer (CO)	Contract Specialist (CS)
Shandiin DeWolfe	Stephanie Begay
(505) 256-6755	(505) 256-6750
Shandiin.DeWolfe@ihs.gov	Stephanie.Begay3@ihs.gov
Contracting Officer's Representative (COR)	Contractor Point of Contact (POC)
Karlisa Benally	Name:
Phone: To be distributed at award	Phone:
Email: To be distributed at award	Email:

6. STATEMENT OF WORK (SOW)

1. Purpose

This SOW defines the required services under a Blanket Purchase Agreement (BPA) for qualified contractors to provide Mechanical, Electrical, and Plumbing (MEP) repair, maintenance, inspection, and emergency services to IHS facilities supported by the Albuquerque Area Office (AAO). The purpose of this BPA is to ensure timely, compliant, and cost-effective support to maintain continuous healthcare operations.

2. Background

The IHS Albuquerque Area Office manages multiple healthcare and administrative facilities within New Mexico, Colorado, and Texas. Maintaining safe, code-compliant MEP systems is critical to ensure patient safety, Joint Commission accreditation, and continuity of clinical services. Due to the diverse range of systems and the geographic

dispersion of facilities, a BPA is required to streamline procurement and ensure rapid access to qualified service providers.

3. Scope of Services

The Contractor shall provide on-call, routine, preventive, corrective, inspection, testing, certification, and emergency Mechanical, Electrical, Plumbing, and Life Safety (MEPLS) services necessary to support safe, code-compliant, and reliable operation of IHS facilities. Services include labor, supervision, tools, equipment, materials, testing instruments, documentation, and incidentals required to perform work in compliance with applicable Federal, State, and local codes and adopted standards including NFPA, NEC, IPC, IMC, ASHRAE, CMS Conditions of Participation, and Joint Commission requirements.

3.1 Mechanical Services

The Contractor shall provide mechanical system inspection, testing, maintenance, repair, and certification services including, but not limited to:

- Chillers, boilers, colling towers, and hydronic systems
- Air handling units (AHUs), rooftop units (RTUs), and ventilation systems
- Ductwork repair, cleaning, sealing, and modification
- HVAC troubleshooting, preventive maintenance, and emergency repair
- Geothermal heating and cooling systems including ground-loop components, pumps, heat exchangers, and associated equipment
- Air compressors, including facility and medical air systems
- Vacuum pumps and associated mechanical equipment
- Cooling towers, including inspection, cleaning, maintenance, and water system support consistent with ASHRAE 188 and facility Water Management Plans
- Air balance and smoke dampers inspection and testing in accordance with NFPA 80 and NFPA 105
- Smoke control and smoke evacuation system testing (where systems exist)
- Pumps, motors, belts, bearings, valves, actuators, and dampers
- Preventive maintenance and emergency mechanical response

HVAC Controls

HVAC controls troubleshooting, calibration, repair, and replacement under this BPA includes field-level components such as sensors, actuators, relays, wiring, controllers, and associated devices.

The following systems are excluded:

- Proprietary Building Automation Systems (BAS), including WebCTRL and Automated Logic (AL) software, programming, configuration, firmware updates, and system-level proprietary modifications.

3.2 Electrical Services

The Contractor shall provide electrical inspection, testing, maintenance, repair, and certification services including:

- Electrical distribution systems, switchgear, panels, breakers, transformers, feeders, grounding and bonding systems
- Installation, repair, and testing of lighting systems, receptacles, hospital-grade receptacles, and associated wiring
- Grounding and bonding testing
- Electrical infrared (IR) thermographic inspections
- Arc flash studies, labeling, and documentation updates
- Code compliance inspections (NEC, NFPA)
- Emergency electrical response

Emergency Power Systems

- Inspection, testing, maintenance, and repair of emergency generators
- Load testing (monthly, annual, and multi-year as required)
- Fuel system inspection and fuel quality testing coordination

- Automatic Transfer Switch (ATS) inspection, testing, and repair
- Line Isolation Monitor (LIM) testing and documentation
- Essential Electrical System (EES) support

Life Safety Electrical Systems

- Inspection and testing of exit signs and emergency egress lighting
- Emergency lighting inverter system testing (where applicable)
- Support for fire alarm system testing and maintenance (see Life Safety section)

3.3 Plumbing and Medical Gas Services

The Contractor shall provide plumbing, water system, and medical gas support services including:

- Domestic water, sanitary sewer, and storm drainage systems
- Leak detection and repair
- Sewer and storm line camera inspection and cleaning
- Repair and replacement of piping, valves, fixtures, and pumps
- Water heater and circulating pump servicing
- Backflow preventer testing and certification
- Hot water temperature verification and control system support
- Cooling tower water system support as related to mechanical systems

Medical Gas and Vacuum Systems

- Inspection, testing, maintenance, and documentation of medical gas and vacuum systems in accordance with NFPA 99
- Source systems, control valves, alarms, outlets, inlets, and piping system components
- Medical gas alarm panel inspection and functional verification
- Medical air compressors and vacuum pump maintenance and testing
- Coordination and documentation of required system verification testing

3.4 Life Safety and Fire Protection Services

The Contractor shall provide inspection, testing, maintenance, repair, and certification services for life safety and fire protection systems including:

- Fire alarm system inspection, testing, and maintenance in accordance with NFPA 72
- Initiating devices, notification appliances, duct detectors, interfaces, and supervisory devices
- Sprinkler systems inspection, testing, and maintenance in accordance with NFPA 25
- Standpipe systems inspection and testing
- Fire pumps inspection, testing, and flow testing
- Portable fire extinguisher inspection, testing, maintenance, and certification
- Fire door inspection and repair
- Means of egress inspection and compliance support
- Kitchen hood fire suppression system inspection and testing
- Fire department connections and water supply system inspection

3.5 Ancillary and Compliance Support Services

- Documentation required for compliance with CMS, Joint Commission, NFPA, and Life Safety Code standards
- Minor construction or demolition directly related to MEPLS repairs
- Coordination with Infection Control, Safety, Environmental Health, and Facility Engineering
- Support during accreditation surveys and regulatory inspections
- Emergency response and system stabilization services

4. Performance Locations

4.1 Locations

Services will be conducted at the AAIHS Service Unit facilities:

1. Albuquerque Service Unit
2. Zuni Service Unit
3. Taos/Picuris Service Unit
4. Santa Fe Service Unit
5. Jicarilla Service Unit
6. Mescalero Service Unit
7. New Sunrise Regional Treatment Center

The contractor may be required to perform services at any Indian Health Service facility under the Albuquerque Area Office, including hospitals, clinics, health stations, administrative buildings, utility plants, and associated staff quarters. Specific locations will be identified in individual Call Orders.

4.2 Hours of Operation

Most facilities operate during normal business hours; however, many sites provide 24-hour healthcare services. Contractor work hours shall be coordinated with the COR or designated facility representative and include:

- Normal business hours: Typically, Monday–Friday, 8:00 a.m. – 5:00 p.m.
- After-hours work: Evenings, nights, weekends, and holidays, when required to support emergency response or minimize disruption to patient care

Work outside normal business hours shall be authorized in advance by the COR, except in emergency situations.

4.3 Escort and Access Requirements

The Contractor shall comply with all facility access and security requirements, which include, but are not limited to:

- Check-in and check-out procedures with facility security or administration
- Wearing visible identification badges at all times
- Government-provided escorts when working in secure, clinical, or patient-care areas
- Compliance with infection control, safety, and privacy requirements

Escort availability may impact work scheduling and response times and shall be coordinated with the COR or facility representative.

4.4 Noise, Dust, and Debris Control

Work shall be performed in a manner that minimizes disruption to patients, staff, and visitors. The Contractor shall:

- Coordinate noisy work activities with facility staff and perform such work during approved time windows
- Implement dust and debris control measures (e.g., barriers, coverings, HEPA vacuums) when required
- Maintain clean and orderly work areas at all times
- Remove and properly dispose of all debris, packaging, and waste generated by the work
- Immediately address any conditions that pose safety, infection control, or environmental concerns

Failure to comply with noise, dust, and debris control requirements may result in temporary work stoppage until corrective actions are implemented.

4.5 Staff Quarters and Residential Areas

When work is performed in staff quarters or residential areas, additional coordination is required to respect occupant privacy and minimize disturbance. Work hours, noise levels, and access shall be approved in advance by the COR or facility representative.

5. Contractor Requirements

5.1 Personnel Qualifications

Contractor staff must hold applicable professional certifications including, but not limited to:

- Journeyman/Master Electrician or Plumber licenses
- HVAC certifications (EPA 608 Universal)
- Medical gas certifications (if applicable)
- OSHA 10/30
- Federal background clearance eligibility

5.2 Response Time Requirements

Response times shall be based on initial acknowledgement, mobilization, and on-site arrival, taking into account facility location, travel distance, and site access requirements.

5.2.1 Emergency Services

Emergency services are defined as conditions posing an immediate risk to patient safety, life safety, or critical facility operations.

- Acknowledgement: within 1 hour of notification
- Remote Assessment/Mobilization: Immediate upon acknowledgement
- On-Site Response:
 - Urban/Local Facilities: within 4 hours, when travel conditions permit
 - Remote Facilities: within 8-12 hours, or next business day when same-day travel is not feasible

If on-site arrival is delayed due to travel, weather, or access constraints, the contractor shall provide remote technical support and coordinate interim mitigation measures until arrival.

5.2.2 Urgent Services

Urgent services are conditions that impact facility operations but do not pose immediate life-safety risk.

- Acknowledgement: within 4 business hours
- On-Site Response: within 1 business day for local facilities and 2 business days for remote facilities, unless otherwise specified in the call order

5.2.3 Routine Services

Routine services include scheduled maintenance and non-critical repairs.

- Acknowledgement: within 1 business day
- On-Site Response: within 3-5 business days or as scheduled in the call order

5.2.4 Travel and Access Considerations

Response times are contingent upon:

- Facility location and distance from contractor staging area
- Weather and road conditions
- Site access, escort requirements, and facility operating hours
- Availability of specialty equipment or parts

Response expectations may be adjusted by the COR on a case-by-case basis and documented in the call order.

5.2.5 Failure to Respond

If a Contractor fails to acknowledge a service request within the required acknowledgement timeframe, fails to mobilize within the required response timeframe or declines to accept a Call Order without reasonable justification as determined by the Contracting Officer, the Government may issue the requirement to another BPA holder without further notice.

Repeated documented failures to respond, mobilize, or perform within the required response timeframes may be considered in future Call Order distribution decisions and may impact the Contractor's opportunity to receive additional work under the BPA.

5.3 Safety and Regulatory Requirements

The Contractor shall comply with all:

- NFPA, NEC, IMC, IPC standards
- OSHA workplace rules
- IHS policies regarding PPE, infection control, and safety

6. Government Furnished Resources

IHS may provide:

- Access to equipment, rooms and mechanical spaces
- Historical maintenance logs
- Escort services where required
- On-site utilities and permitted staging areas

7. Deliverables

Deliverables shall be commensurate with the nature and urgency of the service (emergency, urgent, or routine) as specified in each Call Order.

7.1 Emergency Services

For emergency response services, the Contractor shall prioritize immediate system stabilization and restoration. The following documentation shall be provided after completion of the work:

1. Emergency Service Report (submitted within 2 business days of service completion), including:
 - a. Date and time of response and restoration
 - b. Description of the issue and immediate corrective actions taken
 - c. Personnel on site
 - d. Materials or parts used
 - e. Follow-up recommendations, if any
2. Photographic documentation when feasible and when it does not interfere with emergency response or safety.

Note: A formal work plan or schedule is not required for emergency services.

7.2 Urgent or Corrective Services

For urgent but non-emergency services, the Contractor shall submit:

1. Abbreviated Work Plan or Scope Summary, if requested by the COR
2. Service Report detailing the issue, tasks performed, and corrective actions
3. Applicable inspection or testing documentation, if required by code or regulation

7.3 Routine or Planned Services

For routine maintenance, inspections, or planned repairs, the Contractor shall submit:

1. Work Plan/Schedule
2. Detailed Service Report, including photographs when feasible
3. Inspection and Testing Documentation, as applicable, such as:
 - a. Electrical test reports
 - b. Backflow preventer certifications
 - c. Air balance reports
 - d. Calibration records

7.4 Conditional Deliverables

Inspection and testing documentation shall be required only when applicable to the scope of work performed. The Contractor shall not be required to generate reports for systems or activities not impacted by the service.

8. Invoicing Requirements

Invoices shall be submitted only after completion and Government acceptance of work performed under an authorized Call Order.

Each invoice shall include, at a minimum:

- BPA number and Call Order number
- Facility name and location
- Dates of service
- Labor hours by labor category, as applicable
- Description of work performed sufficient to support payment
- Itemized materials and supplies, with receipts when required
- Travel costs, if authorized in the Call Order
- Total amount invoiced

Invoices shall reflect only work actually performed and shall not exceed the Not-to-Exceed (NTE) amount of the applicable Call Order.

9. Performance Standards

Standard	Requirement	Method of Evaluation
Response Time	Must meet stated timeframes	Government Monitoring
Work Quality	Meets all applicable codes and quality standards	Government inspection
Documentation	Submitted within 3 business days	Review of reports
Safety	Zero preventable incidents	Safety audits

Contractors demonstrating consistent responsiveness, quality workmanship, and compliance with response time requirements may receive increased consideration for future Call orders.

10. Ordering Procedure

This BPA does not obligate funds. Funds are obligated only upon issuance of authorized Call Orders. The Government is not obligated to place any minimum number or dollar value of orders under this BPA. All work shall be ordered through individual Call Orders issued by the Contracting Officer (CO) or an authorized Contracting Officer's Representative (COR) acting within the limits of their delegation.

Each Call Order shall, at a minimum, identify:

- Scope of work
- Facility location(s)
- Period of performance
- Not-to-Exceed (NTE) amount
- Applicable response time and access requirements
- Any special safety, infection control, or security considerations

The Contractor shall not commence work until receipt of a valid Call Order. Verbal direction may be provided by the CO to address emergency conditions; however, such direction shall be confirmed in writing by the CO or COR as soon as practicable.

10.1 Fair Opportunity and Order Distribution

The Government intends to establish multiple BPAs (anticipated award to a minimum of four (4) contractors, if adequate competition exists).

For each Call Order exceeding the micro-purchase threshold, the Government will provide BPA holders a fair opportunity to be considered with the ordering procedures established in this BPA and applicable FAR requirements. However, in cases involving urgent or emergency requirements, life-safety conditions, mission-critical system failures, or where a Contractor fails to respond within required timeframes, the Contracting Officer may issue the Call Order to another BPA holder to ensure timely performance and continuity of operations.

In determining Call Order distribution, the Government may consider Contractor responsiveness, quality of prior performance, ability to meet required response times, geographic coverage, and overall best value to the Government.

10.2 Minimum Order Commitment

The Government intends to place at least \$5,000 in orders under this BPA during the first 12 months after award, provided the BPA Holder is ready, willing, and able to perform at the time of ordering.

This amount represents the Government's total minimum ordering commitment under this BPA. No Funds are obligated until issuance of an authorized Call Order.

SERVICE CONTRACT WAGE DETERMINATION

Wage Determination #2015-5443 Revision 27 dated 12-02-2025 is hereby incorporated.

Government Holidays

New Year's Day	Labor Day
Birthday of Martin Luther King Jr.	Indigenous Peoples Day (Columbus Day)
Washington's Birthday	Veterans Day
Memorial Day	Thanksgiving Day
Juneteenth National Independence Day	Christmas Day
Independence Day	

*Any other day specifically declared by the President of the United States to be a national holiday (see <https://www.opm.gov/policy-data-oversight/pay-leave/federal-holidays/>).

7. INSPECTION AND ACCEPTANCE

All work performed under this contract is subject to inspection and final acceptance by the Contracting Officer (CO) or the duly authorized representative of the Government. The Contracting Officer's Representative (COR), as a duly authorized representative of the Contracting Officer, shall be responsible for monitoring the Contractor's performance, evaluating the quality of services provided, and performing final inspection and acceptance of all deliverables and services required under this contract.

a. Performance Evaluation:

- The Contractor shall meet all requirements of the Statement of Work (SOW) to a satisfactory degree.
- The Contractor shall immediately notify the COR of any information or circumstances that may violate applicable statutes, policies, or procedures, including any changes in federal, state, county, or tribal regulations or licensure requirements that could affect service delivery.
- Review and approval of work shall be performed by the Contracting Officer or authorized representative. Evaluation of services performed under this contract will be conducted jointly by the Contractor and the Government Project Officer during the contract term, and results of such evaluations will become part of the official contract file.

- The evaluation report will address progress made in meeting the contract objectives. Evaluation dates shall be mutually agreed upon by the Contractor and Government Project Officer.

b. Quality Assurance:

The Contractor's work is subject to review as part of the Service Unit Quality Assurance Program (Competency). Reviews may include assessment of completed assignments and supervisory evaluations. The Contractor shall correct any deficiencies identified. Failure to take corrective action may result in termination of the contract for cause if facilities, patients, or staff are endangered or harmed as a result of the Contractor's actions.

c. Contractor Performance Evaluation Report:

Throughout the contract period, the Contractor's performance will be evaluated on both an interim and final basis pursuant to FAR Subpart 42.15, to include the Contractor Performance Assessment Reporting System (CPARS). These evaluations become part of the official contract file and may be used as past-performance information for future procurements involving the Contractor, its affiliates, or significant subcontractors.

d. Contract Discrepancy Report (CDR):

In the event of unsatisfactory contract performance, the Contracting Officer will issue a Contract Discrepancy Report (CDR) describing the circumstances and findings regarding the incomplete or deficient service. The Contractor shall acknowledge receipt of the CDR and provide a written corrective-action plan describing how the deficiency will be resolved and prevented from recurring. The Government will review the Contractor's response for acceptability, and any completed CDRs will become part of the overall performance evaluation record used in assessing current and future contractual obligations.

8. INVOICE SUBMISSION

The Contractor shall submit invoices, as needed. Advance payments will not be issued by Finance unless stated herein. Upload complete invoice with all required documentation to:

<https://www.ipp.gov>

Please do not send any invoices or any invoice-related documents (such as deliverables, reports or balance statements) to the Contracting Officer or Finance Department. Failure to upload required documents directly to the website listed above will delay prompt payment of your invoice.

Additionally, the Contractor is required to include the Unique Entity Identifier (UEI) on each invoice. For additional information about the UEI (<https://www.sam.gov>).

Request for Taxpayer Identification Number and Certification

A W-9 form shall be submitted to the Albuquerque Area Indian Health Service Division of Accounting Services by either of the following:

1. Encrypted Email: ALB_AOAPinvoices@ihs.gov or
2. Secure Fax: (505) 256-6851

Failure to submit the required form W-9 to the office(s) listed above will delay issuance of the IRS 1099 Form.

Credit memos will not be accepted as a form of refund. All refunds are to be submitted via a check addressed to:

Albuquerque Area Indian Health Service
Division of Accounts Receivable
4101 Indian School Road NE, Suite 225
Albuquerque, NM 87110

SECTION C – CONTRACT CLAUSES**FAR 52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)**

This purchase order incorporates one or more clauses by reference and/or full text with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address: <https://www.acquisition.gov/?q=/browse/far/52>

Per FAR Class Deviation 2025-09 Amendment 1: System updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in this solicitation. Contracting officers will rely on representations from offers based on provisions in the solicitation. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM.

FAR Clause	Title	Date
52.202-1	Definitions	Jun 2020
52.203-6 with Alt 1	Restrictions on Subcontractor Sales to the Government.	Jun 2020
52.203-17	Contractor Employee Whistleblower Rights	Nov 2023
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	Jan 2017
52.204-9	Personal Identity Verification of Contractor Personnel	Jan 2011
52.204-13	System for Award Management - Maintenance	Oct 2018
52.204-91	Contractor Identification	Oct 2025
52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded.	Jan 2025
52.209-10	Prohibition on Contracting with Inverted Domestic Corporations	Nov 2015
52.212-4	Contract Terms and Conditions – Commercial Products and Commercial Services	Nov 2023
52.216-4	Economic Price Adjustment – Labor and Material.	Jan 2017
52.219-6	Notice of Total Small Business Set-Aside	Nov 2020
52.219-8	Utilization of Small Business Concerns	Jan 2025
52.219-14	Limitations on Subcontracting	Oct 2022
52.222-3	Convict Labor	Jun 2003
52.222-35	Equal Opportunity for Veterans	Jun 2020
52.222-36	Equal Opportunity for Workers with Disabilities	Jun 2020
52.222-37	Employment Reports on Veterans	Jun 2020
52.222-40	Notification of Employee Rights Under the National Labor Relations Act.	Dec 2010
52.222-41	Service Contract Labor Standards.	Aug 2018
52.222-42	Statement of Equivalent Rates for Federal Hires	May 2014
52.222-43	Fair Labor Standards Act and Service Contract Labor Standards – Price Adjustment (Multiple Year and Option Contracts)	Aug 2018
52.222-50	Combating Trafficking in Persons	Oct 2025
52.222-54	Employment Eligibility Verification	Jan 2025
52.222-62	Paid Sick Leave Under Executive Order 13706	Jan 2022
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	May 2024
52.232-33	Payment by Electronic Funds Transfer – System for Award Management	Oct 2018
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	Mar 2023
52.233-3	Protest After Award	Aug 1996
52.233-4	Applicable Law for Breach of Contract Claim	Oct 2004
52.237-3	Continuity of Services	
52.240-91	Security Prohibitions and Exclusions	Oct 2025
52.244-6	Subcontracts for Commercial Products and Commercial Services	Oct 2025

52.245-1	Government Property	Sep 2021
52.246-4	Inspection of Services – Fixed Priced	Aug 1996
52.249-2	Termination for Convenience of the Government (Fixed-Price)	Apr 2012
52.249-8	Default (Fixed-Price Supply and Service)	Apr 1984

FAR 52.217-8 - OPTION TO EXTEND SERVICES (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 30 days.

FAR 52.217-9 - OPTION TO EXTEND THE TERM OF CONTRACT (MAR 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 30 days; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 60 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed five years.

DEPARTMENT OF HEALTH AND HUMAN SERVICES ACQUISITION REGULATION (HHSAR) (48 CFR CHAPTER 3) CLAUSES

This Contract incorporates some HHSAR provisions/clauses by reference, with the same force and affect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these addresses: HHSAR - <http://www.hhs.gov/policies/hhsar/subpart352.html>

The applicable provisions/clauses are as follows:

HHSAR Clause No.	Title	Date
352.211-3	Paperwork Reduction Act	DEC 2015
352.222-70	Contractor Cooperation in Equal Employment Opportunity Investigations	DEC 2015
352.226-1	Indian Preference	DEC 2015
352.226-2	Indian Preference Program	DEC 2015
352.226-4	Notice of Indian Small Business Economic Enterprise Set-Aside	DEC 2015
352-226-5	Notice of Indian Economic Enterprise Set-Aside	DEC 2015
352.227-70	Publications and Publicity	DEC 2015
352.233-71	Litigation and Claims	DEC 2015

HHSAR 352.203-70 - Anti Lobbying (Dec 2015)

Pursuant to the HHS annual appropriations acts, except for normal and recognized executive-legislative relationships, the Contractor shall not use any HHS contract funds for:

- (a) Publicity or propaganda purposes;
- (b) The preparation, distribution, or use of any kit, pamphlet, booklet, publication, electronic communication, radio, television, or video presentation designed to support or defeat the enactment of legislation before the Congress or any State or local legislature or legislative body, except in presentation to the Congress or any state or local legislature itself; or designed to support or defeat any proposed or pending regulation, administrative action, or order issued by the executive branch of any state or local government, except in presentation to the executive branch of any state or local government itself; or
- (c) Payment of salary or expenses of the Contractor, or any agent acting for the Contractor, related to any activity designed to influence the enactment of legislation, appropriations, regulation, administrative action, or Executive order proposed or pending before the Congress or any state government, state legislature or local legislature or legislative body, other than for normal and recognized executive-legislative relationships or

participation by an agency or officer of a state, local, or tribal government in policymaking and administrative processes within the executive branch of that government.

- (d) The prohibitions in subsections (a), (b), and (c) above shall include any activity to advocate or promote any proposed, pending, or future federal, state, or local tax increase, or any proposed, pending, or future requirement for, or restriction on, any legal consumer product, including its sale or marketing, including, but not limited to, the advocacy or promotion of gun control.

HHSAR 352.232-71 - Electronic Submission of Invoice Payment Requests (Feb 2022)

(a) Definitions. As used in this clause—

Payment request means a bill, voucher, invoice, or request for contract financing payment with associated supporting documentation. The payment request must comply with the requirements identified in FAR 32.905(b), “Content of Invoices” and the applicable Payment clause included in this contract.

(b) Except as provided in paragraph (c) of this clause, the Contractor shall submit payment requests electronically using the Department of Treasury Invoice Processing Platform (IPP) or successor system. Information regarding IPP, including IPP Customer Support contact information, is available at www.ipp.gov or any successor site.

(c) The Contractor may submit payment requests using other than IPP only when the Contracting Officer authorizes alternate procedures in writing in accordance with HHS procedures. Unless otherwise agreed to by the contracting officer per HHSAR 352.232-71(c), the use of IPP shall take precedence over previously established invoicing procedures.

(d) If alternate payment procedures are authorized, the Contractor shall include a copy of the Contracting Officer's written authorization with each payment request. Unless otherwise agreed to by the contracting officer per HHSAR 352.232-71(c), the use of IPP shall take precedence over previously established invoicing procedures.

HHSAR 352.237-70 Pro-Children Act (Dec 2015)

(a) Public Law 103-227, Title X, Part C, also known as the Pro-Children Act of 1994 (Act), 20 U.S.C. 7183, imposes restrictions on smoking in facilities where certain federally funded children's services are provided. The Act prohibits smoking within any indoor facility (or portion thereof), whether owned, leased, or contracted for, that is used for the routine or regular provision of: (i) kindergarten, elementary, or secondary education or library services or (ii) health or day care services that are provided to children under the age of 18. The statutory prohibition also applies to indoor facilities that are constructed, operated, or maintained with Federal funds.

(b) By acceptance of this contract or order, the Contractor agrees to comply with the requirements of the Act. The Act also applies to all subcontracts awarded under this contract for the specified children's services. Accordingly, the Contractor shall ensure that each of its employees, and any subcontractor staff, is made aware of, understands, and complies with the provisions of the Act. Failure to comply with the Act may result in the imposition of a civil monetary penalty in an amount not to exceed \$1,000 for each violation and/or the imposition of an administrative compliance order on the responsible entity. Each day a violation continues constitutes a separate violation.

HHSAR 352.237-71 Crime Control Act-Reporting of Child Abuse (Dec 2015)

(a) Public Law 101-647, also known as the Crime Control Act of 1990 (Act), imposes responsibilities on certain individuals who, while engaged in a professional capacity or activity, as defined in the Act, on Federal land or in a federally-operated (or contracted) facility, learn of facts that give the individual reason to suspect that a child has suffered an incident of child abuse.

(b) The Act designates "covered professionals" as those persons engaged in professions and activities in- eight different categories including, but not limited to, teachers, social workers , physicians, dentists, medical residents or interns, hospital personnel and administrators, nurses, health care practitioners, chiropractors, osteopaths, pharmacists , optometrists, podiatrists, emergency medical technicians , ambulance drivers, alcohol or drug treatment personnel, psychologists, psychiatrists, mental health professionals, child care workers and administrators, and commercial film and photo processors. The Act defines the term "child abuse" as the physical or mental injury, sexual abuse or exploitation, or negligent treatment of a child.

(c) Accordingly, any person engaged in a covered profession or activity under an HHS contract or subcontract, regardless of the purpose of the contract or subcontract, shall immediately report a suspected child abuse incident in accordance with the provisions of the Act. If a child is suspected of being harmed, the appropriate State Child Abuse Hotline, local child protective services (CPS), or law enforcement agency shall be contacted. For more information about where and how to

file a report, the Childhelp USA, National Child Abuse Hotline (1-800-4-A-CHILD) shall be called. Any covered professional failing to make a timely report of such incident shall be guilty of a Class B misdemeanor.

(d) By acceptance of this contract or order, the Contractor agrees to comply with the requirements of the Act. The Act also applies to all applicable subcontracts awarded under this contract. Accordingly, the Contractor shall ensure that each of its employees, and any subcontractor staff, is made aware of, understands, and complies with the provisions of the Act.

HHSAR 352.237-75 - Key Personnel (Dec 2015)

The key personnel specified in this contract are considered to be essential to work performance. At least 30 days prior to the contractor voluntarily diverting any of the specified individuals to other programs or contracts the Contractor shall notify the Contracting Officer and shall submit a justification for the diversion or replacement and a request to replace the individual. The request must identify the proposed replacement and provide an explanation of how the replacement's skills, experience, and credentials meet or exceed the requirements of the contract (including, when applicable, Human Subjects Testing requirements). If the employee of the contractor is terminated for cause or separates from the contractor voluntarily with less than thirty days' notice, the Contractor shall provide the maximum notice practicable under the circumstances. The Contractor shall not divert, replace, or announce any such change to key personnel without the written consent of the Contracting Officer. The contract will be modified to add or delete key personnel as necessary to reflect the agreement of the parties.

SECTION D – DOCUMENTS, EXHIBITS AND ATTACHMENTS

Attachment No.	Description	No. of Pages
1	Pricing Fillable Table	
2	WD #2015-5443, Rev. 27, 12-02-2025	11
3	IHS IEE Representation Form	1

SECTION E – SOLICITATION PROVISIONS**FAR 52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)**

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this address: www.acquisition.gov.

(End of provision)

FAR Clause	Title	Date
52.203-11	Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions.	Sep 2024
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation.	Jan 2017
52.204-7	System for Award Management - Registration	Nov 2024
52.229-11	Tax on Certain Foreign Procurements – Notice and Representation.	Jun 2020
52.212-1	Instructions to Offerors-Commercial Items	Sep 2023
52.233-2	Service of Protest	Sep 2006

FAR 52.209-2 - Prohibition on Contracting with Inverted Domestic Corporations-Representation (Oct 2025)

(a) *Definitions.* As used in this clause—

Inverted domestic corporation means a foreign incorporated entity that meets the definition of an inverted domestic corporation under 6 U.S.C. 395(b), applied in accordance with the rules and definitions of 6 U.S.C. 395(c).

Subsidiary means an entity in which more than 50 percent of the entity is owned—

(1) Directly by a parent corporation; or

(2) Through another subsidiary of a parent corporation.

(b) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at 9.108-3(b) applies or the requirement is waived in accordance with the procedures at 9.108-5.

(c) *Representation.* The Offeror represents that-

(1) It ☐ is, ☐ is not an inverted domestic corporation; and

(2) It ☐ is, ☐ is not a subsidiary of an inverted domestic corporation.

(End of provision)

FAR 52.209-5 - Certification Regarding Responsibility Matters (Oct 2025)

(a)(1) The Offeror certifies, to the best of its knowledge and belief, that—

(i) The Offeror and/or any of its Principals—

(A) Are ☐ are not ☐ presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(B) Have ☐ have not ☐, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a public (Federal, State, or local) contract or subcontract; violation of Federal or State antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property (if offeror checks "have", the offeror shall also see 52.209-7, if included in this solicitation);

(C) Are ☐ are not ☐ presently indicted for, or otherwise criminally or civilly charged by a governmental entity with, commission of any of the offenses enumerated in paragraph (a)(1)(i)(B) of this provision; and

(D) Have ☐, have not ☐, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at 9.104-5(a)(2) for which the liability remains unsatisfied. Federal taxes are considered delinquent if both of the following criteria apply:

(1) *The tax liability is finally determined.* The liability is finally determined if it has been assessed. A liability is not finally determined if a pending administrative or judicial challenge remains. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(2) *The taxpayer is delinquent in making payment.* A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(ii) The Offeror has ☐ has not ☐, within a 3-year period preceding this offer, had one or more contracts terminated for default by any Federal agency.

(2) "Principal," for the purposes of this certification, means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The Offeror shall provide immediate written notice to the Contracting Officer if, at any time prior to contract award, the Offeror learns that its certification was erroneous when submitted or has become erroneous by reason of changed circumstances.

(c) A certification that any of the items in paragraph (a) of this provision exists will not necessarily result in withholding of an award under this solicitation. However, the Government will consider the certification in connection with a determination of the Offeror's responsibility. Failure of the Offeror to furnish a certification or provide such additional information as requested by the Contracting Officer may render the Offeror nonresponsible.

(d) This provision does not require establishment of a system of records in order to render, in good faith, the certification required by paragraph (a). The knowledge and information of an Offeror is not required to exceed that which is normally possessed by a prudent person in the ordinary course of business dealings.

(e) The certification in paragraph (a) of this provision is a material representation of fact upon which reliance was placed when making award. If the Government later determines that the Offeror knowingly rendered an erroneous certification, in addition to other remedies available to the Government, the Contracting Officer may terminate the contract resulting from this solicitation for default.

(End of provision)

FAR 52.209-7 - Information Regarding Responsibility Matters (Oct 2025)

(a) *Definitions.* As used in this provision—

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than \$10,000,000 means—

- (1) The total value of all current, active contracts and grants, including all priced options; and
- (2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror ☐ has ☐ does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in—

(A) The payment of a monetary fine or penalty of \$5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of provision)

FAR 52.209-11 - Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law (Oct 2025)

(a) The Government will not enter into a contract with any corporation that—

(1) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(2) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(b) The Offeror represents that—

(1) It is ☐ is not ☐ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(2) It is ☐ is not ☐ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(End of provision)

FAR 52.212-2 Evaluation – Commercial Products and Commercial Services (Nov 2021)

(a) The Government will award **multiple** firm-fixed price Blanket Purchase Agreements (BPA) resulting from this solicitation to the responsible quoters whose quote conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors (listed in order of descending importance) shall be used to evaluate quotes:

1. Technical Capability
 - a. Technical approach and understanding of MEP services
 - b. Key personnel qualifications and certifications
 - c. Management plan and response capability
2. Past Performance
 - a. Relevant past performance on similar healthcare or institutional facilities
3. Pricing

(b) *Options*. The Government will evaluate quotes for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that a quote is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s).

(c) A written notice of award or acceptance of a quote, mailed or otherwise furnished to the successful quoter within the time for acceptance specified in the quote, shall result in a binding contract without further action by either party. Before the quoter's specified expiration time, the Government may accept a quote (or part of a quote), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award. (End of provision)

Department Of Health and Human Services Acquisition Regulation (HHSAR) (48 CFR Chapter 3) Provisions

This contract incorporates the following HHSAR provisions and clauses by reference, with the same force and effect as if they were provided in full text. The full text of these provisions and clauses is available upon request from the Contracting Officer or may be accessed electronically at: <https://www.hhs.gov/policies/hhsar/subpart352.html>

HHSAR Provision No.	Title	Date
352.226-4	Notice of Indian Small Business Economic Enterprise set-aside	
352.226-7	Indian Economic Enterprise Representation	
352.239-73	Electronic and Information Technology Accessibility Notice	Dec 2015

SECTION F - INSTRUCTIONS, CONDITIONS, AND NOTICE TO OFFERORS

EVALUATION (IHS SUPPLEMENTAL GUIDANCE)

(Supplementing FAR 52.212-2 and FAR 12.203)

Evaluation will be conducted in accordance with FAR Part 12 and FAR 52.212-2 using a comparative, best-value tradeoff evaluation.

Quoters shall submit a complete quotation package consisting of three (3) volumes plus a signed SF-1449. Electronic submission (PDF preferred) is required unless otherwise stated in the solicitation.

1. Volume I – Technical Qualifications

Include the following:

- Quoter Name

- UEI Number
- Point of Contact (name, phone, email)
- A description demonstrating the quoter's capability to perform all requirements in the Statement of Work (SOW).

Each quotation will be independently evaluated and assigned an adjectival rating, risk level, and point score based on the degree to which the quotation demonstrates an understanding of and ability to meet the requirements of the SOW.

Rating	Risk Level	Evaluation Description	Points
Outstanding	Very Low Risk	The quotation demonstrates an exceptional understanding of the SOW requirements and the complexities of performing MEP services in occupied healthcare facilities. The quoter provides multiple significant strengths, including strong experience, qualified staffing, and a clear ability to meet emergency response requirements across multiple and remote locations. The quotation shows a high likelihood of successful performance with little to no risk.	41 - 50
Good	Low Risk	The quotation demonstrates a thorough understanding of the SOW requirements and the ability to perform required MEP services. The quoter provides strengths that support reliable performance, including relevant experience, qualified personnel, and the ability to meet response time requirements. Any weaknesses are minor and do not impact performance. The Government has a high level of confidence in successful performance.	31 – 40
Acceptable	Moderate Risk	The quotation demonstrates an adequate understanding of the SOW requirements and the ability to perform the required services. The quoter meets minimum requirements for experience, staffing, and response capability. Weaknesses may be present but are not expected to significantly impact performance. The Government has reasonable confidence in successful performance.	21 – 30
Marginal	High Risk	The quotation demonstrates a limited understanding of the SOW requirements or does not clearly address key elements such as response times, healthcare environment constraints, or staffing. Weaknesses raise concerns about the quoter's ability to perform required MEP services effectively. The Government has low confidence in successful performance.	11 – 20
Unacceptable	Unacceptable Risk	The quotation fails to demonstrate an understanding of the SOW requirements or does not meet one or more material requirements. The offeror does not demonstrate the ability to provide required MEP services, meet response times, or support healthcare facility operations. The quotation is not eligible for award.	0 – 10

Quotations rated Unacceptable will not be considered for award.

Evaluation Elements:

In evaluating Technical Qualifications, the Government will consider, at a minimum, the following:

A. Relevant Experience

- Demonstrated experience performing MEP services in healthcare, commercial, or institutional facilities
- Experience with maintenance, repair, and emergency response services

B. Staffing and Qualifications

- Availability of qualified personnel (e.g., electricians, HVAC technicians, plumbers)
- Relevant licenses and certifications (e.g., journeyman/master trades, EPA 608)
- Ability to support multiple locations and service calls

C. Technical Approach

- Understanding of the SOW requirements
- Approach to performing all MEP services safely and efficiently
- Ability to coordinate work in occupied healthcare environments
- Approach to life-safety systems support, deconfliction, and compliance

D. Response Capability

- Ability to meet required response times for:
 - Emergency services
 - Urgent services
 - Routine services
- Approach to servicing remote facilities and multiple Service Units

E. Overall Capability

- ability to perform the full scope of services, either directly or through teaming arrangements
- demonstrated understanding of working within a multiple-BPA environment

2. Volume II - Past Performance

Past Performance will be evaluated based on the recency and relevance of prior contracts of similar scope and complexity and assessed as a confidence assessment (e.g., Substantial Confidence, Satisfactory Confidence, Neutral Confidence, Limited Confidence, or No Confidence).

- Recency: Contracts performed within the last 5 years
- Relevance: Similar scope and complexity, including remote medical coding, billing, accounts receivable, and claims processing services

Provide up to five (5) recent and relevant contracts or jobs of similar scope. Include:

- Customer/organization
- Location
- Dates of performance
- Description of work
- Contract value (if available)
- POC name, phone, and email

In addition, IHS may evaluate:

- CPARS reports
- Other federal past performance records
- Subcontractor performance (IAW FAR 12.203(a)(2))
- Past performance information already known to the Government

A lack of past performance will be evaluated as Neutral Confidence and will not be considered negative. Past Performance confidence assessments will be considered in the best-value tradeoff in conjunction with Technical Qualifications and Price.

3. Volume III - Quote –

Price will be evaluated for reasonableness, completeness, and balance using the unit prices submitted in the Pricing Table. For evaluation purposes:

The Government may consider whether the quoter's pricing is consistent with the proposed technical approach and whether pricing presents a risk to successful performance.

Evaluation of price does not obligate the Government to order the maximum quantities or to exercise any option periods.

Additional Required Documents

- Signed SF-1449 (first page only is acceptable).
- Signed IHS Buy Indian Act Indian Economic Enterprise Representation Form (IEE Form).
- Signed and acknowledged amendments, if any.

Communications/Questions: All questions must be submitted in writing to the Contracting Officer identified on the SF-1449 by **April 9, 2026**. Responses may be issued via amendment if necessary. Telephone inquiries will not be accepted.

Award Decision

Award will be made to the responsible quoters whose quotation represents the best value to the Government, considering Technical Qualifications, Past Performance, and Price. Technical capability and qualifications are more important than price. The Government may select a higher-priced quotation if it is determined that the technical merit and/or past performance merits justify the price premium. However, as quotations become more technically equal, price may become a more important factor in the award decision.

The Government may communicate with quoters to clarify aspects of their quotations but intends to award without discussions, though it reserves the right to conduct discussions if determined to be in the Government's best interest.